COMPLAINT OF PROHIBITED PERSONNEL PRACTICE OR OTHER PROHIBITED ACTIVITY

For instructions or questions, call the Case Review Division at (202) 804-7000.

* Denotes Required Fields

IMPORTANT INFORMATION ABOUT FILING A PPP COMPLAINT

REQUIRED COMPLAINT FORM

Complaints alleging a prohibited personnel practice or a prohibited activity must be submitted using the Online Filing Portal or emailing OSC Form 14 to our office. Information not submitted on or accompanied by this form may be returned by OSC to the filer. The complaint will be considered filed on the date on which OSC receives the completed form. 5 C.F.R. § 1800.1, as amended.

NO OSC JURISDICTION

OSC cannot take any action on complaints filed by employees of –

- the FBI, CIA, DIA, NSA, National Geospatial-Intelligence Agency, ODNI, National Reconnaissance Office or other intelligence agencies excluded from coverage by the President;
- the Government Accountability Office;
- the Postal Rate Commission; and
- the uniformed services of the United States (*i.e.*, uniformed military employees). OSC does have jurisdiction over civilian employees of the armed forces.

LIMITED OSC JURISDICTION

For employees of some federal agencies or entities, OSC's jurisdiction is limited to certain types of complaints, as follows –

- FAA employees only for allegations of retaliation for whistleblowing under 5 U.S.C. § 2302(b)(8) and most allegations of retaliation for engaging in protected activities under 5 U.S.C. § 2302(b)(9).
- Employees of government corporations listed at 31 U.S.C. § 9101 only for allegations of retaliation for whistleblowing under 5 U.S.C. § 2302(b)(8) and most allegations of retaliation for engaging in protected activities under 5 U.S.C. § 2302 (b)(9).
- U.S. Postal Service employees only for allegations of nepotism.
- TSA employees only for allegations of discrimination under § 2302(b)(1), retaliation for whistleblowing under 5 U.S.C. § 2302(b)(8), and most allegations of retaliation for engaging in protected activities under 5 U.S.C. § 2302(b)(9).

ELECTION OF REMEDIES

You may choose only one of three possible methods to pursue your prohibited personnel practice complaint: (a) a complaint to OSC; (b) an appeal to the Merit Systems Protection Board (MSPB) (if the action is appealable under law or regulation); or (c) a grievance under a collective bargaining agreement. If you have already filed an appeal about your prohibited

personnel practice allegations with the MSPB, or a grievance about those allegations under the collective bargaining agreement (if the action is grievable under the agreement), OSC may lack jurisdiction over your complaint.5 U.S.C. § 7121(g).

COMPLAINTS INVOLVING DISCRIMINATION

- Race, Color, Religion, Sex, National Origin, Age, and Disability (or Handicapping Condition): OSC is authorized to investigate discrimination based upon race, color, religion, sex, national origin, age, or disability (or handicapping condition), as well as retaliation related to EEO activity. 5 U.S.C. § 2302(b)(1). However, OSC generally defers such allegations to agency procedures established under regulations issued by the Equal Employment Opportunity Commission (EEOC). 5 C.F.R. § 1810.1. If you wish to report allegations of discrimination based on these bases, you should contact your agency's EEO office immediately. There are specific time limits for filing such complaints. Filing a complaint with OSC will not relieve you of the obligation to file a complaint with the agency's EEO office within the time prescribed by EEOC regulations (at 29 C.F.R. Part 1614).
- Marital Status and Political Affiliation: OSC is authorized to investigate discrimination based on marital status or political affiliation. 5 U.S.C. § 2302(b)(1).
- Sexual Orientation and Gender Identity: OSC is authorized to investigate discrimination based on sexual orientation and gender identity. 5 U.S.C. §§ 2302(b)(1) and (b)(10). EEOC also may have jurisdiction over complaints of discrimination on these bases.

COMPLAINTS INVOLVING VETERANS' RIGHTS

By law, all complaints alleging denial of veterans' preference requirements or USERRA must be filed with the Veterans Employment and Training Service (VETS) at the Department of Labor (DOL). 38 U.S.C. § 4301, *et seq.*, and 5 U.S.C. § 3330a(a).

CONTACT INFORMATION

Title: Hon
First Name:* Kevin
Last Name:* Turnage
Middle Initial: Dean

International Address?: No
Address:*

1003 E Pinto CT
Gilbert, AZ 85296

Cell Phone Number:
Office Phone Number:
Email Address:* kdturnage@protonmail.com

Home Phone Number:
Ext.

Preferred means of contact:
Email: Yes
Home phone: No

Cell phone: Yes
Office phone: No

REPRESENTATIVE INFORMATION

Do you have representation?* No

Information about representative, if applicable.
First Name:*

Last Name:*
Middle Initial:

International Address?:
Address:*

Office Phone Number:
Cell Phone Number:
Email Address:*

Ext.
Home Phone Number:

EMPLOYMENT INFORMATION

Name of Department/Agency about which you are filing this complaint.
Department:* Health and Human Services
Agency:* Indian Health Service
Agency subcomponent: Phoenix Indian Medical Center
Street Address: 4212 N 16th Street
City: Phoenix **State:** AZ
Zip Code: 85016

Employment Status:* Current Federal Employee

Title	Series	Grade
Policy and Procedure Nurse	GS-0610	GS-12

Please provide your dates of employment in this position.
01/18/2011 - Present

Are you covered by a collective bargaining agreement? I don't know

Employment Service Type	Employment Service Subtype	If Other (specify)
Competitive Service	Career or career-conditional appointment	

DETAILS OF YOUR COMPLAINT

Use this section to identify the type of Prohibited Personnel Practice (PPP) that you are alleging. You can enter more than one PPP, but you MUST choose one option. A customized series of questions will appear following your selection that you should use to provide detailed information about your complaint. You can return to this part at any time prior to submitting your complaint if you would like to add or remove allegations.

PPPs ALLEGED

Allegation	Retaliation for Whistleblowing - (b)(8)
What did you disclose? If you made your disclosure in writing, please attach a copy to your complaint before you submit it.	Violations of Federal Law, Mismanagement, Gross Mismanagement
When did you disclose it?	2024-2025
To whom did you make your disclosure?	HHS OIG, Congress, Senate, Elected Representatives, OSHA
How did you learn of the information you disclosed?	Daily interactions of position

When and how did agency officials learn about your disclosure?	May 2025 contacted by investigator
What action did the agency take in response to your disclosure? (For example, did the agency investigate or otherwise look into what you disclosed or was disciplinary action taken against responsible parties?)	After I made my protected disclosures (see the timeline in my OSC filing), the agency did not investigate the matters I reported nor take any disciplinary action against the individuals or officials responsible for the alleged waste, fraud, abuse, and patient-safety violations. Instead, the agency responded with a series of retaliatory personnel actions that directly targeted me for speaking out: Date Agency Action Effect on Me May 25, 2025 I sent a Protected Disclosure Notice to Debra Ward-Lund, Clinton Pope, and Endreya McCabe outlining policy-governance violations. No acknowledgment of the allegations; no investigation was opened. May 27, 2025 (1:37 PM) I e-mailed the same officials requesting clarification of policy authority and duties. No response or corrective action; the request was ignored. May 28, 2025 (7:00 AM) Filed a whistle-blower retaliation complaint with HHS-OIG. The agency continued its retaliatory conduct; no internal review of my OIG filing was initiated. May 28, 2025 (10:10 AM) I asked why I had been removed from all approval workflows. Clinton Pope replied, "Remove yourself from all approval workflows." I was formally stripped of all functional responsibilities without any investigation of my disclosures. June 27 - July 11, 2025 The agency placed me on administrative leave, then converted the leave to a 30-day investigative leave (verbal notice only, no written threat/legitimate-interest analysis). Additional leave extensions and a "Notice Leave" were issued, all without written determinations or pre-clearance. I was removed from my position, denied access to agency systems, and barred from performing any work duties. July 18, 2025 (10:38 a.m.) Dr. Endreya McCabe, Ms. Birdshead, and Ms. Rossell demanded that I return all government-issued property (PIV card, laptop, phone, keys)

	by 12:00 p.m. the same day - less than 90 minutes after I was told of the demand. Immediate loss of all agency credentials and equipment, further preventing me from performing any job functions. July 18, 2025 (12:06 p.m.) The same property-return demand was reiterated, confirming the unreasonable deadline. Reinforced the coercive, retaliatory pressure. June 9, 2025 I submitted detailed reports to the Joint Commission, CMS Region 9, and HHS-OIG describing patient-safety violations, undisclosed bed-capacity reductions, and alleged fraud. The agency did not initiate any internal investigation of these serious concerns; instead, it continued the leave and access restrictions. July 11, 2025 Verbal conversion of my administrative leave to a 30-day investigative leave without any written notice, threat analysis, or justification (violating 5 U.S.C. § 7513(b)). Constructive suspension and continued retaliation. Summary of Agency Response 1. No Investigation: The agency never opened an internal investigation, convened a fact-finding panel, or took any disciplinary action against the individuals I reported (e.g., the staff members responsible for the alleged policy violations, the senior officials who approved the unsafe practices, or the supervisors who created the hostile environment). 2. Retaliatory Personnel Actions: Instead of addressing the disclosures, the agency: - Placed me on successive periods of administrative, investigative, and notice leave; - Stripped me of all system access, credentials, and physical keys; - Removed me from all approval workflows; - Demanded the immediate return of government property on an unreasonable timeline; - Continued to deny me any opportunity to return to duty or to be heard.

	3. No Corrective Measures: No corrective or remedial steps were taken to fix the waste, fraud, abuse, or patient-safety issues I reported. The responsible parties remain in their positions, and the alleged violations persist. Conclusion The agency's sole response to my protected disclosures was a pattern of unlawful retaliation rather than any legitimate investigation or corrective action. This conduct directly violates the Whistleblower Protection Act (5 U.S.C. § 2302(b)(8)-(9)) and the related procedural safeguards for federal employees. **Statement of Sham Investigation** The only investigation the agency ever conducted was a sham. I reported the Chief Quality Officer (CQO) to the Hospital Compliance Officer for multiple violations of Federal law, including violations of Radiation Safety, violations of CMS laws and statutes. Rather than investigating the CQO's unlawful conduct, the agency turned that report around and launched a retaliatory investigation against me. The agency falsely alleged that I had created a hostile work environment, using my good-faith disclosure of the CQO's illegal actions as the pretext for the investigation. This retaliatory action was intended to punish me for reporting wrongdoing and to silence further disclosures.
Description of personnel action(s), if applicable.	After I reported the Chief Quality Officer's alleged violations of Federal law (May 25 – May 28 2025), the agency did not investigate the misconduct nor discipline the officials I identified. Instead, the agency's sole actions were retaliatory: Date (2025) Agency Action Effect May 25 I sent a Protected Disclosure Notice to senior

	officials. No investigation was opened; the notice was ignored. May 27 (1:37 PM) E-mailed the same officials requesting clarification of policy authority. No response or corrective action. May 28 (7:00 AM) Filed a whistle-blower retaliation complaint with HHS-OIG. The agency continued its retaliatory conduct; no internal review was initiated. May 28 (10:10 AM) Requested clarification on removal from all approval workflows; received a directive from Clinton Pope: "Remove yourself from all approval workflows." I was stripped of all functional duties. July 11 Verbal conversion of my administrative leave (originally imposed after the May disclosures) to a 30-day investigative leave – no written notice, threat/legitimate-interest analysis, or pre-clearance (violates 5 U.S.C. § 7513(b)). I was placed on unpaid-status leave without due-process. July 18 (10:38 a.m.) Dr. Endreya McCabe, Ms. Birdshead, and Ms. Dill demanded I return all government-issued property (PIV card, laptop, phone, keys) by 12:00 p.m. the same day (less than 90 minutes' notice). Immediate loss of credentials and equipment; further prevented me from performing any work. July 18 (12:06 p.m.) Re-affirmed the same property-return demand. Reinforced the unreasonable deadline. June 27 – July 11 Issued multiple administrative-leave extensions and a "Notice Leave" – all without written determinations, pre-clearance, or justification. Extended the period of non-duty status, creating a constructive suspension. June 27 – July 11 Continued denial of access to agency computer systems, email, and physical facilities. Maintained my inability to work. June 27 Re-imposed administrative leave (effective immediately until further notice). Added to the cumulative leave period. Result: The agency's response was purely retaliatory—administrative leave, conversion to investigative leave,

	removal from workflows, denial of system access, and an unreasonable demand to surrender government property—while failing to investigate the Chief Quality Officer's alleged illegal conduct or to discipline any responsible parties.
When was the personnel action(s) taken? By whom?	May 28 2025 (10:10 a.m.) Directive to "Remove yourself from all approval workflows." Clinton Pope, Acting ACNO – In-house supervisor. June 27 2025 (08:24 a.m.) Re-imposed administrative leave (effective immediately). Dr. Endreya McCabe, IHS senior manager (with HR concurrence). June 27 – July 11 2025 Administrative-leave extensions and a "Notice Leave" (no written determinations). IHS Human-Resources/Employee-Relations Office (executed under Dr. Endreya McCabe's authority). July 11 2025 Verbal conversion of the existing administrative leave to a 30-day investigative leave (no written notice, threat/legitimate-interest analysis). Dr. Endreya McCabe, with assistance from IHS HR/Employee-Relations. July 18 2025 (10:38 a.m.) Demand to return all government-issued property (PIV card, laptop, phone, keys) by 12:00 p.m. the same day (≈ 90-minute notice). Dr. Endreya McCabe, Dora Birdshead (Employee-Relations Officer), and Michelle Rossell (Regional HR Director). July 18 2025 (12:06 p.m.) Re-affirmation of the same property-return demand (same deadline). Same officials as above – Dr. Endreya McCabe, Birdshead, Rossell. July 18 2025 (through July 11) Continued denial of access to agency computer systems, email, and physical facilities (maintaining the leave status). IHS IT Security and HR/Employee-Relations, acting under the direction of Dr. Endreya McCabe.
What was the agency's stated reason for taking the personnel action(s)?	None have been provided to date
What facts demonstrate that the personnel action(s)	On **May 25 2025** I sent a protected-disclosure notice to senior officials (Ward-Lund, Pope, and McCabe) reporting

is retaliatory? (For example, were comments made that suggest that agency officials were angry because of your disclosure or did your relationships cool following your disclosure?)	the Chief Quality Officer's violations. Two days later, on **May 27 2025** I e-mailed the same officials requesting clarification of policy authority, but received no response. The next day, **May 28 2025**, after filing a whistle-blower retaliation complaint with HHS-OIG, **Clinton Pope** issued a directive at **10:10 a.m.** ordering me to "Remove yourself from all approval workflows," stripping me of my functional duties. On **June 27 2025** at **8:24 a.m.**, **Dr. Endreya McCabe** re-imposed administrative leave effective immediately, and later that same day at **1:28 p.m.** she sent a written notice again placing me on administrative leave. Between **June 27 and July 11 2025** the agency issued multiple unauthorized administrative-leave extensions and a "Notice Leave," all without written determinations, pre-clearance, or the required threat/legitimate-interest analysis mandated by 5 U.S.C. § 7513(b). On **July 11 2025** Dr. McCabe verbally converted the administrative leave into a **30-day investigative leave** without any written notice or analysis, violating the same statutory requirement. The following day, **July 18 2025** at **10:38 a.m.**, **Dr. Endreya McCabe**, **Dora Birdshead** (Employee Relations), and **Michelle Rossell** (Regional HR) demanded that I return all government-issued property (PIV card, laptop, phone, keys) by **12:00 p.m.** the same day—giving me less than ninety minutes to comply and providing no justification. At **12:06 p.m.** the same demand was reaffirmed, reinforcing the unreasonable deadline. Beginning **July 18 2025** and continuing through **August 26 2025**, I was denied access to agency computer systems, email, and physical facilities, effectively preventing me from performing any work and constituting a constructive suspension; the denial of access persisted with an ongoing facility ban and no return-to-duty instructions. On **September 9 2025** at **2:09 p.m.**, Joshua Namingha sent an email demanding I complete an SF-85P and fingerprinting by **September 16, 2025**, and at **3:20 p.m.** Dr. McCabe forwarded that email to my personal address, violating privacy-act protections. On **November 24 2025** at **8:37 a.m.** Dr. McCabe placed

	me on a "Notice Leave" until further notice in an unsigned email, and at **9:24 a.m.** she issued a second email with a digital signature confirming the same notice. Finally, on **November 25 2025** at **9:31 a.m.** I received an email from multiple officials requesting that deficiencies be corrected, underscoring the continued pressure and retaliation. All of these actions occurred after my protected disclosures and demonstrate clear retaliation in violation of the Whistleblower Protection Act (5 U.S.C. § 2302(b)(8)-(9)) and Title VII retaliation provisions.
Why do you believe agency officials would retaliate against you? (For example, did agency officials suffer some adverse impact or embarrassment because of your disclosure?)	On **May 25 2025** I sent a protected-disclosure notice to senior officials (Ward-Lund, Pope, and McCabe) reporting the Chief Quality Officer's violations. Two days later, on **May 27 2025** I e-mailed the same officials requesting clarification of policy authority, but received no response. The next day, **May 28 2025**, after filing a whistle-blower retaliation complaint with HHS-OIG, **Clinton Pope** issued a directive at **10:10 a.m.** ordering me to "Remove yourself from all approval workflows," stripping me of my functional duties. On **June 27 2025** at **8:24 a.m.**, **Dr. Endreya McCabe** re-imposed administrative leave effective immediately, and later that same day at **1:28 p.m.** she sent a written notice again placing me on administrative leave. Between **June 27 and July 11 2025** the agency issued multiple unauthorized administrative-leave extensions and a "Notice Leave," all without written determinations, pre-clearance, or the required threat/legitimate-interest analysis mandated by 5 U.S.C. § 7513(b). On **July 11 2025** Dr. McCabe verbally converted the administrative leave into a **30-day investigative leave** without any written notice or analysis, violating the same statutory requirement. The following day, **July 18 2025** at **10:38 a.m.**, **Dr. Endreya McCabe**, **Dora Birdshead** (Employee Relations), and **Michelle Rossell** (Regional HR) demanded that I return all government-issued property (PIV card, laptop, phone, keys) by **12:00 p.m.** the same day—giving me less than ninety minutes to comply and providing no justification. At **12:06 p.m.** the same demand was reaffirmed, reinforcing

	the unreasonable deadline. Beginning **July 18 2025** and continuing through **August 26 2025**, I was denied access to agency computer systems, email, and physical facilities, effectively preventing me from performing any work and constituting a constructive suspension; the denial of access persisted with an ongoing facility ban and no return-to-duty instructions. On **September 9 2025** at **2:09 p.m.**, Joshua Namingha sent an email demanding I complete an SF-85P and fingerprinting by **September 16, 2025**, and at **3:20 p.m.** Dr. McCabe forwarded that email to my personal address, violating privacy-act protections. On **November 24 2025** at **8:37 a.m.** Dr. McCabe placed me on a "Notice Leave" until further notice in an unsigned email, and at **9:24 a.m.** she issued a second email with a digital signature confirming the same notice. Finally, on **November 25 2025** at **9:31 a.m.** I received an email from multiple officials requesting that deficiencies be corrected, underscoring the continued pressure and retaliation. All of these actions occurred after my protected disclosures and demonstrate clear retaliation in violation of the Whistleblower Protection Act (5 U.S.C. § 2302(b)(8)-(9)) and Title VII retaliation provisions.
Were the agency officials involved in taking the personnel actions against you accused of wrongdoing in your disclosures? If yes, which ones?	Pope , Ward Lund, Aird, Dill - Both All others only part of Personnel actions
Allegation	Retaliation for Protected Activity - (b)(9)
In what protected activity did you engage?	
Filed a complaint, appeal, or grievance	Yes
Testified for or lawfully assisted an individual in the exercise of their right to file a complaint, appeal, or grievance	Yes

Cooperated with or disclosed info to an Inspector General, OSC, or other investigator	Yes
Refused to obey an order that would require you to violate a law, rule, or regulation	
Other	
When did you engage in the protected activity?	2024-2025
Please briefly describe the nature of your protected activity.	I assisted fellow employees with EEOC claims, I reported violations to OSC, Reported wrongdoing to OIG, Congress, and Senate
What action did the agency take in response to your protected activity? (For example, did the agency investigate or otherwise look into what you disclosed or was disciplinary action taken against responsible agency officials?)	No actions taken by Agency
When and how did agency officials learn about your protected activity?	Unsure other than OIG notified when filed May 2025 complaint
Description of personnel action(s), if applicable.	Facts showing the personnel action was retaliatory Immediate timing – I was placed on 10-day administrative leave within hours of my March 21 2023 email reporting sexual harassment and a hostile work environment. Direct link in agency communications – HR and senior officials referred to the leave as a "retributive" response to my disclosure. Removal of duties – On May 28 2025, after I sent a protected-disclosure notice, Clinton Pope ordered, "Remove yourself from all approval workflows," stripping me of my

	functional responsibilities. Conversion to investigative leave – On July 11 2025, Dr. Endreya McCabe verbally changed my administrative leave to a 30-day investigative leave without any written notice or threat/legitimate-interest analysis (violates 5 U.S.C. § 7513(b)). Unreasonable property-return demand – On July 18 2025, Dr. McCabe, Ms. Birdshead, and Ms. Rossell demanded I return all government-issued property by 12 p.m. the same day (≈ 90 minutes' notice). No justification was provided. Multiple unauthorized leave extensions – From June 27 to July 11 2025, HR issued several extensions and a "Notice Leave" without written determinations or pre-clearance, all after my May 2025 disclosures. Denial of system access – During the same period, I was blocked from agency email, computers, and physical facilities, preventing me from performing any work. No investigation of the reported misconduct – The agency never investigated the Chief Quality Officer's alleged violations that I reported; instead, it focused on punishing me. These facts demonstrate a clear causal connection between my protected disclosures and the adverse personnel actions, satisfying the retaliation standard under the Whistleblower Protection Act (5 U.S.C. § 2302(b)(8)-(9)).
When was the personnel action(s) taken? By whom?	Debra Ward Lund, Stephanie Aird, Naomi Hixson, Kathy Dill, Clinton Pope, Endreya McCabe, Dora Birdshead, Michelle Rossell
What was the agency's stated reason for taking the personnel action(s)?	No reasons given
What facts demonstrate that the personnel action(s) is retaliatory? (For example, were comments made that suggest that agency officials were angry because of your disclosure or did your relationships	Summary of 2025 retaliation 1. Taken actions – Administrative leave, conversion to investigative leave, multiple unauthorized leave extensions, removal from approval workflows, denial of system access, confiscation of government property, and an unreasonable demand to return that property within 90 minutes. 2. Not taken – No investigation of the Chief Quality Officer's

cool following your disclosure?)	alleged violations; no disciplinary action against the officials I reported; no corrective measures to address the policy-governance issues I raised. 3. Threatened – Further leave extensions, additional "Notice Leave" periods, and continued denial of access, all used to keep me off duty and to discourage any future disclosures. 4. No Due Process - have not been notified of why I am on leave. These actions occurred after my protected disclosures in May 2025 and are directly linked to them, satisfying the retaliation element under the Whistleblower Protection Act (5 U.S.C. § 2302(b)(8)-(9)) and Title VII retaliation provisions.
Why do you believe agency officials would retaliate against you? (For example, did agency officials suffer some adverse impact or embarrassment because of your disclosure?)	On **May 25 2025** I sent a protected-disclosure notice to senior officials (Ward-Lund, Pope, and McCabe) reporting the Chief Quality Officer's violations. Two days later, on **May 27 2025** I e-mailed the same officials requesting clarification of policy authority, but received no response. The next day, **May 28 2025**, after filing a whistle-blower retaliation complaint with HHS-OIG, **Clinton Pope** issued a directive at **10:10 a.m.** ordering me to "Remove yourself from all approval workflows," stripping me of my functional duties. On **June 27 2025** at **8:24 a.m.**, **Dr. Endreya McCabe** re-imposed administrative leave effective immediately, and later that same day at **1:28 p.m.** she sent a written notice again placing me on administrative leave. Between **June 27 and July 11 2025** the agency issued multiple unauthorized administrative-leave extensions and a "Notice Leave," all without written determinations, pre-clearance, or the required threat/legitimate-interest analysis mandated by 5 U.S.C. § 7513(b). On **July 11 2025** Dr. McCabe verbally converted the administrative leave into a **30-day investigative leave** without any written notice or analysis, violating the same statutory requirement. The following day, **July 18 2025** at **10:38 a.m.**, **Dr. Endreya McCabe**, **Dora Birdshead** (Employee Relations), and **Michelle Rossell** (Regional HR) demanded that I return all government-issued property (PIV card, laptop, phone,

	keys) by **12:00 p.m.** the same day—giving me less than ninety minutes to comply and providing no justification. At **12:06 p.m.** the same demand was reaffirmed, reinforcing the unreasonable deadline. Beginning **July 18 2025** and continuing through **August 26 2025**, I was denied access to agency computer systems, email, and physical facilities, effectively preventing me from performing any work and constituting a constructive suspension; the denial of access persisted with an ongoing facility ban and no return-to-duty instructions. On **September 9 2025** at **2:09 p.m.**, Joshua Namingha sent an email demanding I complete an SF-85P and fingerprinting by **September 16, 2025**, and at **3:20 p.m.** Dr. McCabe forwarded that email to my personal address, violating privacy-act protections. On **November 24 2025** at **8:37 a.m.** Dr. McCabe placed me on a "Notice Leave" until further notice in an unsigned email, and at **9:24 a.m.** she issued a second email with a digital signature confirming the same notice. Finally, on **November 25 2025** at **9:31 a.m.** I received an email from multiple officials requesting that deficiencies be corrected, underscoring the continued pressure and retaliation. All of these actions occurred after my protected disclosures and demonstrate clear retaliation in violation of the Whistleblower Protection Act (5 U.S.C. § 2302(b)(8)-(9)) and Title VII retaliation provisions.
Were the agency officials involved in taking the personnel actions against you accused of wrongdoing in your disclosures? If yes, which ones?	Both

PPP SUBJECTS

Agency official(s) responsible for the PPP(s) alleged:

First Name	Last Name	Title	Chain of Command	Allegation

Debra	Ward Lund	CEO	4th	Retaliation for Protected Activity - (b)(9)
Endreya	McCabe	Director of Quality and Performance Improvement	1st	Retaliation for Protected Activity - (b)(9)
Clinton	Pope	Chief Quality Officer	2	Retaliation for Protected Activity - (b)(9)
Kathy	Dill	Chief Operating Officer	3rd	Retaliation for Protected Activity - (b)(9)
Stephanie	Aird	Deputy CEO	4th	Retaliation for Protected Activity - (b)(9)
Dora	Birdshead	Human Resources		Retaliation for Protected Activity - (b)(9)
Naomi	Hixson	Chief Compliance Officer		Retaliation for Protected Activity - (b)(9)
Michelle	Rossell	Director, Southeast Region Human Resource Center		Retaliation for Protected Activity - (b)(9)
Clinton	Pope	CQO	2nd	Retaliation for Whistleblowing - (b)(8)
Endreya	McCabe	Director of Quality and Performance Improvement	1st	Retaliation for Whistleblowing - (b)(8)
Kathy	Dill	COO	3rd	Retaliation for Whistleblowing - (b)(8)

Stephanie	Aird	Deputy CEO	4th	Retaliation for Whistleblowing - (b)(8)
Debra	Ward Lund	CEO	4th	Retaliation for Whistleblowing - (b)(8)
Naomi	Hixson	Compliance Officer		Retaliation for Whistleblowing - (b)(8)
Dora	Birdshead	Employee Relations		Retaliation for Whistleblowing - (b)(8)
Michelle	Rossell	Director, Southeast Region Human Resources		Retaliation for Whistleblowing - (b)(8)

PERSONNEL ACTIONS

What personnel action(s) do you believe was taken, not taken, or threatened as part of the prohibited personnel practice(s) alleged?

Personnel Actions
Suspension
Harassment/Hostile Work Environment
Other Discipline
Detail
Other
Changes to Duties/Working Conditions
Performance evaluation
Reassignment

REQUESTED OSC ACTION

What action would you like OSC to take?

I am filing this complaint to report continuing and escalating retaliation by the Indian Health Service (IHS), Phoenix Indian Medical Center (PIMC), in reprisal for protected whistleblower disclosures I submitted in 2023 and 2025 to the Office of Special Counsel, HHS Office of Inspector General, CMS Region 9, and members of Congress.

Despite already filing a civil action concerning past retaliation (CV-25-03367-PHX-SMB), IHS has engaged in new acts of retaliation during the fourth quarter of 2025 that were not included in that case and which materially altered my working conditions and status. These actions include:

Placement on indefinite "notice leave" as of November 25, 2025, without a written proposal, due process, or a specified return date;

Continued exclusion from all policy approval workflows and professional functions of my official position;

Denial of workplace reintegration despite being in a paid duty status;

Constructive revocation of a prior Reasonable Accommodation by removing access to equipment and then claiming unavailability;

Chilling effects on my ability to continue disclosing misconduct without retaliation.

These retaliatory actions occurred after my protected disclosures in April–June 2025 regarding:

Regulatory and safety violations submitted to CMS and Joint Commission;

Material misrepresentations by IHS executives to external surveyors;

Violations of 5 U.S.C. § 2302(b)(8) and failures of policy governance within PIMC.

I seek OSC's investigation and corrective action regarding this continuing pattern of retaliation and the agency's misuse of indefinite leave status to isolate and neutralize a protected whistleblower.

WHERE ELSE DID YOU REPORT THIS MATTER?

I have also reported this information to:

Other Report Type	Action Taken Date

ATTACHMENTS

Please note that the space available for attachments is limited. Therefore, DO NOT attach every document and email that may be relevant to your claim. You will have an opportunity to make additional submissions at a later date. We recommend limiting attachments to official forms and correspondence that document the action(s) at issue in your disclosure if these documents are relevant to your allegations.

I have attached the following documents to my filing:

File Name
Exhibit 2 Second Amended complaint Kevin Turnage Protected Disclosure and Retaliation Timeline.pdf

CONSENT

OSC asks everyone who files a complaint alleging a possible prohibited personnel practice or other prohibited activity to select one of three Consent Statements shown below. Please: (a) select and check one of the Consent Statements below; and (b) keep a copy for your own records.*

If you initially select a Consent Statement that restricts OSC's use of information, you may later select a less restrictive Consent Statement. If your selection of Consent Statement 2 or 3 prevents OSC from being able to conduct an investigation, an OSC representative will contact you, explain the circumstances, and provide you with an opportunity to select a less restrictive Consent Statement.

You should be aware that the Privacy Act and other applicable federal laws allow information in OSC case files to be used or disclosed for certain purposes, regardless of which Consent Statement you sign. Information about certain circumstances under which OSC can use or disclose information under the Privacy Act appears in the Form Submission part of this form.

Consent Statement 1
I consent to OSC's communication with the agency involved in my complaint. I agree to allow OSC to disclose my identity and information about my complaint if OSC decides that such disclosure is needed to investigate my complaint (for example, to request information from the agency or seek a possible resolution).
Yes

Consent Statement 2
I consent to OSC's communication with the agency involved in my complaint, but I do not agree to allow OSC to disclose my identity to that agency. I agree to allow OSC to disclose only information about my complaint, without disclosing my name or other identifying information, if OSC decides that such disclosure is needed to investigate my complaint (for example, to request information from the agency, or seek a possible resolution). I understand that in some circumstances, OSC could not maintain my anonymity while communicating with the agency involved about a specific personnel action. In such cases, I understand that my request for confidentiality may prevent OSC from taking further action on the complaint.
No

Consent Statement 3
I do not consent to OSC's communication with the agency involved in my complaint. I understand that if OSC decides that it cannot investigate my complaint without communicating with that agency, my lack of consent will probably prevent OSC from taking further action on the complaint.
No

CERTIFICATION

I certify that all of the statements made in this complaint are true, complete, and correct to the best of my knowledge and belief. I understand that a false statement or concealment of a material fact is a criminal offense punishable by a fine, imprisonment, or both. 18 U.S.C. § 1001.*
Yes

BURDEN: The burden for this collection of information (including the time for reviewing instructions, searching existing data sources, gathering the data needed, and completing and reviewing the form) is estimated to be an average of one hour to submit a disclosure of information alleging agency wrongdoing, one hour and fifteen minutes to submit a

complaint alleging a prohibited personnel practice or other prohibited activity, or 30 minutes to submit a complaint alleging prohibited political activity. Please send any comments about this burden estimate, and suggestions for reducing the burden, to the U.S. Office of Special Counsel, General Counsel's Office, 1730 M Street, NW, Suite 218, Washington, DC 20036-4505.

This complaint of Prohibited Personnel Practice(s) was received by OSC on:
12/31/2025

PLEASE KEEP A COPY OF YOUR COMPLAINT, ANY SUPPORTING DOCUMENTATION, AND ANY ADDITIONAL ALLEGATIONS THAT YOU SEND TO OSC NOW OR AT ANY TIME WHILE YOUR COMPLAINT IS PENDING.
REPRODUCTION CHARGES UNDER THE FREEDOM OF INFORMATION ACT MAY APPLY TO ANY REQUEST YOU MAKE FOR COPIES OF MATERIALS THAT YOU PROVIDED TO OSC.